

CASE SUMMARY

State v. Amit Gahlot

Ct. Case No. 300/2022 | CNR DLSW01-004506-2022 | Court of the Additional Sessions Judge (Electricity), South-West District, Dwarka Courts, Delhi

COURT	Court of the Additional Sessions Judge (Electricity), South-West District, Dwarka Courts, Delhi
JUDGE	Ms. Harleen Singh, Addl. Sessions Judge (Electricity)
DATE OF JUDGMENT	date of judgment (date of inspection / offence: 15 February 2022)
PARTIES	State (BSES Rajdhani Power Ltd.) v. Amit Gahlot (user / registered consumer)
STATUTES INVOKED	Section 135 (and third proviso to s. 135(1)), Electricity Act, 2003; Sections 101, 106 & 65B, Indian Evidence Act, 1872; Sections 251 & 313, Cr.P.C.
RESULT	Acquitted — complaint dismissed. A major date discrepancy, a malfunctioning original CD replaced by an uncertified substitute, and a valid commercial connection since 2019 undid the charge. The accused stands acquitted of the charge under Section 135 read with Section 150 of the Electricity Act, 2003.

CHARGE BEFORE THE COURT

Whether the accused Amit Gahlot dishonestly abstracted electricity at the inspected premises, so as to attract Section 135 read with Section 150 of the Electricity Act, 2003; and whether the prosecution's evidence, marred by date and electronic-record defects, proved the abstraction.

FACTS

BSES Rajdhani alleged theft (assessed at about Rs. 13.52 lakh). The complaint stated the date of inspection as 15.02.2021, while all the documents and witnesses put it at 15.02.2022 — a discrepancy of a full year. The original videography CD could not be played (30.09.2024); a substitute CD supplied later (04.12.2024) was admittedly not prepared by the original maker, and the Section 65B certificate from the old CD did not pertain to the new one, which was covered by no valid certificate. The material team head (Gulfan Ansari) was not examined; defence witnesses (neighbours) said the raid was at an adjacent/different premises; and there was no proof of service of the reports.

On a complaint under Section 135 r/w 150, the accused pleaded not guilty. The Court noted that the accused held a valid commercial connection since 2019 and directed BSES to reinstall the meter. Under Section 313 Cr.P.C. the accused denied the allegations.

REASONING OF THE COURT

HEADNOTE

A year-long discrepancy in the date of inspection, an unplayable original CD replaced by a substitute covered by no valid Section 65B certificate, an unexamined team head and defence evidence that the raid was at a different premises leave the abstraction unproved — the more so where the accused held a valid commercial connection, prompting an order to reinstall the meter.

The presumption arises only after the prosecution proves the foundational facts. The Court proceeded from first principles: the third proviso to Section 135(1) is a reverse-onus clause that operates only once the prosecution has proved, beyond reasonable doubt, both an unauthorised abstraction of electricity and the identity of the accused as its author or the consumer of the premises. Until that foundation is laid the ordinary burden rests on the prosecution, and where two views are reasonably possible the one favouring the accused must be preferred.

The date of inspection was internally inconsistent by a year. The complaint put the inspection at 15.02.2021 while every document and witness put it at 15.02.2022; a discrepancy of a full year in the foundational fact of when the raid occurred is not a clerical slip the Court could overlook.

The electronic record was broken and uncertified. The original CD could not be played; the substitute CD was not prepared by the original maker and was covered by no valid Section 65B certificate (the old certificate not pertaining to it) — the videography, the heart of the proof, was inadmissible.

Identity of the premises was contradicted. The team head was not examined, defence neighbours deposed that the raid was at an adjacent/different premises, and there was no proof of service of the reports; against this, the accused's valid commercial connection since 2019 led the Court to order the meter reinstalled.

The cumulative doubt entitled the accused to acquittal. With a year-long discrepancy in the inspection date, an unplayable original CD replaced by an uncertified substitute, an unexamined team head and defence proof that the raid was elsewhere, the foundational facts were not established to the standard the law requires. The statutory presumption never arose, the benefit of the doubt went to the accused, and the charge under Section 135 read with Section 150 of the Electricity Act, 2003 was not brought home.

INTERPRETATION OF THE ELECTRICITY STATUTES

ELECTRICITY ACT, 2003

Section 135(1) — Theft of Electricity: the Foundational Facts

The Court read Section 135(1) as requiring the prosecution first to prove, beyond reasonable doubt, the foundational facts — an unauthorised or artificial abstraction of electricity *and* the identity of the accused as its author or as the consumer/user of the inspected premises. Only upon proof of those facts does the offence, or the abetment of it, arise; a bare allegation, or mere presence at or near the spot, is not enough. As the Act does not define “dishonestly,” Section 24 IPC is imported, but dishonest intention presupposes an abstraction first fixed on the accused.

Third Proviso to Section 135(1) — When the Presumption Does Not Arise

The reverse-onus presumption of dishonest use operates only after the prosecution has established the artificial means of abstraction and connected it to the accused. Where that foundation fails — the inspection is self-contradictory, the user's identity is not fixed, material witnesses are withheld, the electronic record is not duly certified under Section 65B, or the officer's authority to complain is not proved — the presumption never arises. The ordinary rule then governs: the prosecution must prove guilt beyond reasonable doubt, and where two views are reasonably possible the one favouring the accused is adopted.

HELD

The prosecution having failed to prove the foundational facts — a year-long discrepancy in the inspection date, an unplayable original CD replaced by an uncertified substitute, an unexamined team head and defence proof that the raid was elsewhere — the charge under Section 135 read with Section 150 of the Electricity Act, 2003 was not established beyond reasonable doubt. **The accused is accordingly acquitted, and the complaint is dismissed.**

SIGNIFICANCE

An acquittal (with a meter-reinstatement order) on a year-long date error and a broken electronic record. Four propositions stand out:

- **A year's discrepancy in the raid date is fatal.** When the prosecution cannot agree with itself on when the inspection happened, the foundational fact is unproved.
- **A substitute CD needs its own Section 65B certificate.** A certificate tied to an unplayable original does not cover a later substitute prepared by someone else.
- **An unexamined team head plus contrary neighbour evidence unsettles identity.** Where the defence shows the raid may have been elsewhere, the premises themselves are in doubt.
- **A valid subsisting connection tells against theft.** A commercial connection held since 2019 — and an order to reinstate the meter — is hard to square with the alleged theft.

CITATIONS

The decision turned wholly on the evidence; neither side pressed any case authority, and the Court decided the matter on the record before it.

This summary is a condensed digest prepared for quick reference. It is not a substitute for the full text of the judgment and should not be relied upon for legal advice without verification against the original.